

CHAPTER 54.

An Act to grant money for the purpose of certain Local Loans out of the Local Loans Fund, and for other purposes relating to Local Loans.

[19th August 1921.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Grants for
public
works.

1.—(1) For the purpose of local loans, there may be issued by the National Debt Commissioners the following sums, namely:—

(a) For the purpose of loans by the Public Works Loan Commissioners, any sum or sums not exceeding in the whole the sum of forty million pounds;

(b) For the purpose of loans by the Commissioners of Public Works in Ireland, any sum or sums not exceeding in the whole the sum of one hundred and fifty thousand pounds.

50 & 51 Vict.
c. 16.

(2) The sums so issued shall, subject as hereinafter provided, be issued during a period ending on the day on which a further Act granting money for the purposes of those loans comes into operation, and in accordance with the provisions of the National Debt and Local Loans Act, 1887:

10 & 11
Geo. 5. c. 67.

Provided that nothing in this subsection shall affect the operation of the provisions of subsection (2) of section twenty-one of the Government of Ireland Act, 1920, relating to advances out of the Local Loans Fund for loans in Ireland.

Certain debts
not to be
reckoned as
assets of
local loans
fund.

2. Whereas it is expedient that the principal of the several local loans specified in the tables contained in Part I. and Part II. respectively of the Schedule to this Act should, to the extent specified in the last column of those tables, not be reckoned as assets of the local loans fund established under the National Debt and Local Loans Act, 1887:

Now, therefore, the principal of the said loans to the extent aforesaid and the said sums shall be written off from the assets of the local loans fund, and the provisions of section fifteen of the said Act shall, so far as applicable, apply thereto.

3. Whereas in pursuance of an agreement made in the year eighteen hundred and ninety-two the sum of ten thousand pounds was advanced by the Public Works Loan Commissioners to the Eyemouth Harbour Trustees on the security of the harbour revenues with the collateral security of the Fishery Board for Scotland :

Remission of
arrears of
principal and
interest in
respect of
Eymouth
Harbour
loan.

And whereas by an arrangement confirmed by section three of the Public Works Loans Act, 1901, the liability of the Eyemouth Harbour Trustees in respect of the said loan was extinguished without prejudice to the liability of the Fishery Board for Scotland to repay the said loan, and, in consequence thereof, the said collateral security is the sole security for the repayment of the said loan :

1 Edw. 7.
c. 35.

And whereas the terms of the said collateral security are embodied in a memorandum of agreement between the Secretary for Scotland and the Public Works Loan Commissioners, dated the eleventh day of March, eighteen hundred and ninety-two, whereby a portion of the surplus herring brand fees, as defined in clause three of the said memorandum, was pledged in security for the repayment of the said loan with interest by the instalments and at the times mentioned in the security given by the Eyemouth Harbour Trustees for the said loan, and it was provided that the said portion of the surplus herring brand fees of any one year should only be applicable to the repayment of the one-fiftieth part of principal and interest on outstanding principal falling due under the security for the said loan in the same year, and should not be applicable to the repayment of arrears of principal :

And whereas the said portion of the surplus herring brand fees, so pledged as aforesaid, was in the year ending the thirty-first day of March, nineteen hundred and twenty-one, insufficient to discharge in full the instalment of principal with interest which fell due under the security for the said loan in that year, and the principal sum of two hundred pounds, with interest amounting to one hundred and forty-eight pounds two shillings, now remains unpaid, and under the terms of the said memorandum of agreement is irrecoverable :

Now, therefore, the said principal sum of two hundred pounds shall be extinguished, and the said arrears of interest amounting to one hundred and forty-eight pounds two shillings shall be remitted.

Short title.

4. This Act may be cited as the Public Works Loans Act, 1921.

Section 2.

SCHEDULE.

PART I.

LOANS BY THE PUBLIC WORKS LOAN COMMISSIONERS.

Loan under the Harbours and Passing Tolls Act, 1861
(24 & 25 Vict. c. 47).

Name of Borrower.	Amount of Loan.	Amount to be written off.
Eyemouth Harbour Trustees -	£ 10,000	£ 200

PART II.

LOANS BY THE COMMISSIONERS OF PUBLIC WORKS IN IRELAND.

Loans under the Landed Property Improvement (Ireland) Act, 1847 (10 Vict. c. 32).

Name of Borrower.	Amount of Loan.	Amount to be written off.
	£	£ s. d.
Wm. Creagh Hickie - - - {	575	217 12 5
	820	552 7 1
	800	676 14 7
	500	457 11 7
	150	138 1 5
	250	244 0 2
	300	299 2 2
	95	22 5 1
Robert Chawner - - - {	200	93 3 7
	100	51 15 3